

SOCIAL MEDIA CONTENT CREATION MASTER SERVICES AGREEMENT TERMS AND CONDITIONS

This Social Media Content Creation Master Services Agreement, together with the provisions in the attached Order Form, sets forth the terms and conditions under which Playkit will provide services to Client (the "Agreement"). The terms and conditions in this Agreement shall apply to all work Playkit performs for Client under approved Order Forms during the Term, as defined below

1) **Engagement.** Client hereby engages Playkit to provide, and Playkit shall provide Client, with the services set forth in the Order Form attached hereto (collectively, the "Services"). To the extent that the parties later mutually agree that Playkit will provide additional services to Client, additional Order Forms will be entered into referencing and incorporating these Terms and Conditions. Each Order Form, together with these Terms and Conditions, shall constitute a binding agreement. The executed Order Form shall constitute approval to undertake the Services set forth therein. Client agrees and acknowledges that Playkit shall not commence any Services prior to an Order Form being executed and the corresponding Fee set forth therein being received.

2) **Services Parameters.**

a) **Scope of Services.** Playkit shall provide the specific services described in the applicable Order Form, which may include social media content creation, account setup and optimization, content strategy development, creator management, and performance reporting.

b) **Campaign Structure.** Each discrete project undertaken pursuant to this Agreement shall constitute a "Campaign." Each Campaign shall be governed by a separate Order Form that specifies the campaign duration, specific deliverables, performance metrics, start and end dates, and applicable fees. A Campaign shall commence on the Campaign Start Date specified in the applicable Order Form and shall conclude upon the earlier of: (i) completion of all deliverables set forth in the Order Form; or (ii) the expiration of the campaign duration specified therein. Multiple Campaigns may be conducted concurrently or sequentially during the Term of this Agreement.

c) **Service Levels and Deliverables.** All service levels, deliverables, timelines, target

metrics, and performance standards shall be as set forth in the applicable Order Form. Where an Order Form specifies target volumes or quantities using terms such as "approximately," "estimated," or "targeting," Playkit shall use commercially reasonable efforts to achieve such targets, subject to creator availability, platform conditions, and factors outside Playkit's reasonable control including without limitation: (i) changes to social media platform algorithms, policies, or terms of service; (ii) content removal, suppression, or demotion by platforms; (iii) creator illness, unavailability, or termination of platform accounts; (iv) platform technical issues or outages; and (v) changes in audience engagement patterns or platform user behavior. Playkit shall not be deemed in breach of this Agreement for failure to achieve estimated or targeted metrics due to such factors.

d) **Creator Management.** Where Services involve engagement of content creators or influencers, Playkit may substitute creators as needed to maintain service levels, provided that substitute creators reasonably match the experience, reach, and content quality of the original creators.

3) **Cooperation.**

a) Client acknowledges that the successful and timely rendering of the Services and the successful development and deployment of any materials related thereto by Playkit will require the good faith cooperation of Client. Accordingly, Client will fully cooperate with Playkit, including, without limitation, by: (a) providing Playkit with all information and materials reasonably requested by Playkit and necessary or appropriate for Playkit to render the Services ("Client Materials"); (b) making available Client personnel to Playkit; (c) providing at least one employee or consultant with substantial relevant experience to act as a client contact in connection with the Services; (d) providing timely review and approval of the Playbook as set forth in Section 6; and; and (e) furnishing Playkit with adequate substantiation of all descriptions and representations requested by Client to be included in materials created for Client.

b) Playkit shall provide the Services to Client on the schedule set forth in the initial Order Form and any future Order Forms. Playkit

shall not be liable for delays caused by Client's delay or failure to cooperate as set forth herein, including without limitation Client's failure to timely approve the Playbook, and all due dates shall be extended to accommodate Client's actions and/or requests for changes to the Services or materials provided by Playkit.

4) **Compensation.** As full and complete consideration for the Services and Deliverables, Client shall pay to Playkit the following amounts:

- a) **Fee.** In consideration of the Services to be performed by Playkit, Client shall pay the fee set forth in initial Order Form and any future Order Forms for the Services provided (the "Fixed Fee"). Additionally, Playkit shall receive contingent compensation based on the performance of the Campaign created hereunder as delineated on the initial Order Form, or any future Order Form (the "Contingent Fee")
- b) **Out-of-Pocket Expenses and Third-Party Costs.** In addition to the Fee, Client shall be responsible for any additional and preapproved Playkit's out-of-pocket expenses incurred in connection with its rendition of the Services and delivery of the Deliverables hereunder (which may include, without limitation music licensing charges, and other third-party production charges).
- c) **Payment.**
 - i) **Fees.** Client shall pay Playkit fifty percent (50%) of the Fixed Fee upon execution of the applicable Order Form to secure the campaign start date. The remaining fifty percent (50%) shall be due and payable before the Campaign Start Date specified in the Order Form. Playkit shall not commence any Services until full payment has been received. Campaign start dates are Mondays, and final payment must be received by the Friday immediately preceding the start date. Any Contingent Fee shall be paid within five (5) days of invoice as set forth in the applicable Order Form. Any Expenses shall be billed to Client on an invoice and shall be due upon receipt due to the nature of the Services being offered.
 - ii) **Late Payment.** Client shall be responsible for interest on all amounts overdue by more than thirty (30) days at a rate of the lesser of one and one-half percent (1.5%),

or the maximum rate allowable by applicable law, along with all of Playkit's reasonable and necessary collection costs, including without limitation reasonable attorneys' fees and expenses, incurred in connection therewith. If Client is delinquent in any payment due hereunder for at least thirty (30) days, Playkit shall have the right to: (i) suspend the Services hereunder until such time as Client makes such applicable payment; or (ii) terminate this Agreement as provided for herein. All grants of any license to use or transfer ownership of any intellectual property rights under these Terms are conditioned upon receipt of payment in full of the Fee.

5) **Ownership.**

- a) **Ownership and License.** Subject to Client's payment obligations as set forth herein, Playkit shall retain all right, title, and interest in and to the social media accounts, content, and Deliverables created hereunder. Upon full payment, Playkit hereby grants to Client a perpetual, worldwide, royalty-free, non-exclusive license to use, reproduce, distribute, display, and perform the Deliverables for both paid advertising and organic marketing purposes. Client may not sublicense, transfer, or assign this license to third parties without Playkit's prior written consent.
- b) **Client Materials.** Client grants Playkit a limited license commencing upon execution of this Agreement and continuing during the Term to use and to authorize third parties solely in connection with the Services: (i) Client's trademarks; (ii) Client Materials; and (iii) Client's domain names, website addresses, websites.
- c) **Playkit Property.** Notwithstanding subsection (a) above, all creative content, computer code, methodologies, and other information and/or materials created by Playkit prior to or outside the scope of this Agreement (the "Playkit Property") shall remain the sole and exclusive property of Playkit, despite its incorporation in the Deliverables. Subject to Client's payment obligations as set forth herein, Playkit hereby grants a fully paid-up, perpetual, worldwide, non-exclusive, non-transferable license to Client to use the Playkit Property, but only to the extent incorporated into the Deliverables and without any modification thereto. In no event shall Client be entitled to use any of the

Playkit Property separately and apart from its incorporation in the Deliverables hereunder.

- d) **Third Party Materials.** Playkit shall use commercially reasonable efforts to ensure all third-party materials incorporated into the Deliverables are properly licensed. Client acknowledges that content creators may use third-party materials (such as music, effects, or other content) available through the social media platforms' libraries, and Playkit makes no warranty regarding the scope of rights in such platform-provided materials.
 - e) **Playkit Promotional Rights.** Notwithstanding anything set forth herein to the contrary, Client grants Playkit the nonexclusive right and license, without prior approval, to use any and all non-confidential Deliverables following their publication to promote Playkit and to market Playkit's services to third parties, including submitting such Deliverables to industry award shows and posting them on Playkit's website.
 - f) **Preliminary Materials.** Notwithstanding anything set forth herein to the contrary, any Deliverables prepared or proposed by Playkit but not produced and published or broadcast within the term of the applicable Order Form, and any Deliverables prepared or proposed by Playkit and rejected by Client, shall remain the property of Playkit (the "Preliminary Materials"). Subject to the terms hereof, Playkit shall have the right to use the Preliminary Materials without limitation; provided, however, that, any such use shall not involve the release of any of Client's confidential information.
- 6) **Approvals.** Notwithstanding anything to the contrary in this Agreement, Client's right of approval with respect to the Services and Deliverables created hereunder shall be limited solely to the Playbook. All other Deliverables, including without limitation individual pieces of content, creator posts, and campaign assets, shall not be subject to Client's approval and Playkit shall have the right to proceed with the production and publication thereof in accordance with the approved Playbook. Client's approval of the Playbook shall be made within the timeframe set forth in the applicable Order Form. If Client fails to approve or disapprove the Playbook within such timeframe, the Playbook shall be deemed approved and Playkit may proceed accordingly. To the extent that Client disapproves of the Playbook, Client shall promptly provide Playkit with written notification detailing its disapproval and provide Playkit with a reasonable opportunity to cure any defect(s) therein. Once Client has approved the Playbook, any revisions Client requests following such approval may incur additional fees for which Client shall be responsible. For purposes of this Agreement, "Playbook" shall mean the strategic campaign document prepared by Playkit that sets forth the overall content strategy, creative direction, messaging framework, content pillars, target audience parameters, platform-specific guidelines, posting cadence, and creator briefing materials for a given Campaign, as further described in the applicable Order Form
- 7) **Right of Refusal.** Playkit may, in its sole good faith discretion, refuse to assist in the publication of any advertising provided by Client to Playkit hereunder if: (i) it does not comply with Playkit's (and/or the particular publisher's) specific formatting, editorial, and/or publishing guidelines; (ii) it believes in good faith that the publication of such ad copy violates any applicable law, rule, or regulation (including without limitation any federal regulations such as Section (5) of the FTC Act, Section 43(a) of the Lanham Act, or the Copyright Act of 1976), and/or (iii) it believes in good faith that such ad copy does not comply with reasonable moral standards promulgated by either the Playkit, the applicable publisher, and/or society in general. Notwithstanding the foregoing, Playkit shall, prior to any such refusal, provide Client with written notification detailing the reason(s) associated therewith, in order to provide Client with the opportunity to conform the ad in question to Playkit's reasonable specifications. Any refusal hereunder shall not result in the termination of this Agreement.
- 8) **Legal Compliance with Advertising Laws, Rules and Regulations.** Client acknowledges that it is Playkit's business policy to conduct advertising campaigns in a manner so as not to: promulgate advertising that is, in any way, false or misleading, misuse or misappropriate another party's intellectual property and/or other third party rights of any kind, send obscene messages to any recipients, and/or use email or any other medium to conduct illegal or immoral activities of any kind as per current, applicable law. Client and Playkit both agree not to take any actions inconsistent with this policy, and to make all of its employees and agents aware of such policy in order to ensure compliance herewith. Playkit shall provide creators with compliance guidance for FTC advertising regulations, including requiring the use of appropriate disclosure hashtags (e.g., #partner) in all sponsored content. Client acknowledges that Playkit implements these disclosure practices as part of

the Services. Notwithstanding anything to the contrary herein, Client shall provide, at its own expense, legal review and approval of the Playbook and provide any specific legal compliance requirements for the Services Playkit is providing to the extent Client determines such guidance is required. In the event Client fails to provide such legal compliance guidance or review, Client shall bear all risk and liability arising from or related to any content published without such review, and Playkit shall have no liability therefor. Failure to provide legal compliance timely review shall not delay campaign timelines, and Client assumes all risk for content published without such review.

9) Confidentiality.

- a) Neither party (each, a "receiving party"), along with its directors, officers, employees, agents, advisors, subcontractors, independent contractors, subsidiaries, and affiliates (collectively its "Representatives") shall, during the Term and for a period of two (2) years thereafter, without the other party's (each, a "disclosing party") prior written approval in each instance (not to be unreasonably withheld), disclose or otherwise make available to any other person or entity any information relating to the disclosing party's business plans, products, innovations, fees, advertising or product concepts, customers, technology, computer software, computer systems, marketing methods, sales margins, cost of goods, cost of materials, capital structure, operating results, or other proprietary or confidential business affairs (including without limitation, Playkit's rates and the remainder of the terms hereof) (the "Confidential Information").
- b) The foregoing shall not apply to: (i) information which is or becomes known to the general public other than as a result of the disclosure, directly or indirectly, by the receiving party or its Representatives; (ii) information that was or is made available to the receiving party on a non-confidential basis from a source other than the disclosing party or any affiliate, provided that such source is not, and was not, to the receiving party's knowledge, bound by a confidentiality agreement with the disclosing party or otherwise prohibited from transmitting such information; (iii) information required to be disclosed by law, provided the receiving party gives the disclosing party prompt notice and a reasonable opportunity to seek an appropriate protective order at its own expense; (iv) any Deliverables that have been

publicly published or broadcast, which shall not constitute Confidential Information of either party following such publication or broadcast; or (v) aggregated, anonymized, or non-attributable campaign performance data, metrics, and results, which each party may use for its own internal analysis, marketing materials, pitch decks, case studies, and industry purposes, provided that: (A) such use does not disclose the other party's proprietary methodologies, rates, or fees; (B) notwithstanding either party's right to use the other's name and likeness for marketing purposes, such use does not disclose the other party's proprietary methodologies, rates, or fees without prior written consent; and (C) any financial terms or specific pricing remain confidential. It is understood that Confidential Information may be disclosed by the receiving party only to Representatives who need to know such information for the purposes of fulfilling its obligations hereunder, and such Representatives shall be informed of the confidential nature of such information and agree to be bound by the terms hereof.

- c) All Confidential Information furnished to the receiving party by the disclosing party or any third party at the request of the disclosing party shall be and remain the property of the disclosing party. All copies of such Confidential Information in written, graphic, or other tangible form shall be returned to the disclosing party at any time upon the advance written request of the disclosing party or upon the termination of this Agreement for any reason whatsoever, subject to the terms hereof.

10) Non-Solicitation/Non-Circumvention.

During the Term and for two (2) years thereafter, Client shall not: (i) solicit the services of, or directly engage or circumvent Playkit to work with, any of Playkit's employees, independent contractors, or consultants; or (ii) directly engage, contract with, solicit, or otherwise circumvent Playkit to work with any content creators who participated in any of Client's Campaigns (collectively, "Covered Persons"). Notwithstanding the foregoing, this restriction shall not apply to: (a) any employee, independent contractor, or consultant of Playkit who has ceased providing services to Playkit for at least one (1) consecutive year prior to any such solicitation; or (b) any Covered Person who responds to a general solicitation for employment or engagement publicly disseminated by Client through publicly available means, including without limitation job boards, career websites, or

social media platforms, provided that any engagement based thereon shall not be deemed a violation hereof. Client agrees that Playkit's remedy at law for any breach of this Section shall be inadequate, and therefore Playkit shall be entitled to injunctive relief for such breach, without proof of irreparable injury and without having to post a bond, in addition to any other right or remedy it may have.

11) Third Party Platforms and Software.

Playkit utilizes proprietary software in connection with the Services, as well as certain third-party tools and software ("Third-Party Software") such as project management and communication platforms. In addition, the Services involve the publication and distribution of content on third-party social media platforms (e.g., TikTok, Instagram, YouTube, Facebook) (collectively, "Third-Party Platforms"). Client acknowledges and agrees that:

- i) Playkit has no control over the policies, algorithms, terms of service, or operations of any Third-Party Platform;
- ii) Playkit shall not be liable for any damage, loss, content removal, suppression, demotion, account suspension, or other adverse action caused by or attributable to any Third-Party Platform or Third-Party Software; and
- iii) Changes to Third-Party Platform policies or terms of service may affect campaign performance, and such changes shall not constitute a breach by Playkit.

12) Representations & Warranties. Each party represents and warrants that it is duly organized, validly existing and in good standing in its state of incorporation and has full power and authority to enter into this Agreement and fulfill its obligations hereunder. Each party further represents and warrants that the individual executing this Agreement on its behalf has the full legal authority to do so and to bind such party to the terms hereof. Each party further represents and warrants to the other party that the information and materials provided by it hereunder, to the best of such party's knowledge, when used as authorized: (i) are complete, true, and accurate in every respect; (ii) do not violate any applicable law, rule, or regulation (including any and all applicable advertising regulations); and (iii) to the best of the party's knowledge do not violate the third party rights of any person or entity in any way (including without limitation any intellectual property, privacy, defamation, or publicity rights).

13) Indemnification. Each party (each, the "Indemnifying Party") agrees to indemnify, defend, and hold the other party (each, the "Indemnified Party"), along with the Indemnified Party's affiliates, officers, directors, employees, subsidiaries, parent, agents, and permitted assigns, harmless from and against any and all third party claims, losses, liabilities, damages, expenses, and costs, including reasonable outside attorneys' fees and court costs, to the extent arising out of the Indemnifying Party's: (i) gross negligence or willful misconduct; or (ii) material breach of any of the terms of this Agreement (including without limitation the representations & warranties contained herein). The Indemnified Party shall provide the Indemnifying Party with prompt written notice of any claim and give complete control of the defense and settlement to the Indemnifying Party, and shall reasonably cooperate with the Indemnifying Party, its insurance company, and its legal counsel in its defense of such claim(s), at the Indemnifying Party's expense. This indemnity shall not cover any claims in which there is a failure to give the Indemnifying Party prompt notice, to the extent such lack of notice prejudices the defense of the claim. The Indemnifying Party may not settle any potential suit hereunder without the Indemnified Party's prior written approval (not to be unreasonably withheld, conditioned or delayed). Client agrees and acknowledges that the Indemnification provided herein shall extend to any third party Influencers Playkit engages on behalf of Client.

14) Limitation of Liability. IN NO EVENT SHALL PLAYKIT BE LIABLE UNDER THIS AGREEMENT TO CLIENT FOR ANY INCIDENTAL, CONSEQUENTIAL, INDIRECT, STATUTORY, SPECIAL, EXEMPLARY OR PUNITIVE DAMAGES, INCLUDING, BUT NOT LIMITED TO, LOST PROFITS, LOSS OF USE, LOSS OF TIME, INCONVENIENCE, LOSS BUSINESS OPPORTUNITIES, DAMAGE TO GOOD WILL OR REPUTATION, AND COSTS OF COVER, REGARDLESS OF WHETHER SUCH LIABILITY IS BASED ON BREACH OF CONTRACT, TORT, STRICT LIABILITY OR OTHERWISE, AND EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. UNDER NO CIRCUMSTANCES SHALL PLAYKIT BE LIABLE TO CLIENT FOR THE ACTIONS, BEHAVIORS, OR STATEMENTS OF ANY THIRD-PARTY SOCIAL MEDIA INFLUENCER ENGAGED TO PROVIDE SERVICES ON BEHALF OF CLIENT. PLAYKIT'S AGGREGATE LIABILITY FOR CLAIMS RELATING TO THIS AGREEMENT WILL BE LIMITED TO AN AMOUNT EQUAL TO THE SUM OF THE FEES PAID BY CLIENT TO PLAYKIT OR THE

SPECIFIC CAMPAIGN GIVING RISE TO THE CLAIM. ANY CLAIM MADE PURSUANT TO THIS SECTION MUST BE MADE WITHIN ONE YEAR OF THE INCIDENT TO WHICH IT RELATES OR FOREVER BE BARRED.

- 15) **No Guarantee.** Client agrees and acknowledges that Playkit makes no promise or guarantees about the outcome of the Services provided hereunder. Nothing in this Agreement or in statements Playkit makes or has made to Client shall be construed as a promise or guarantee about the outcome of the Services. Playkit makes no such promises or guarantees, and any such statements or comments should be construed as expressions of intent only.

16) **Term and Termination.**

- a) **Term.** The term of this Agreement (the "Term") shall commence as of the Effective Date of this agreement and continue for twelve (12) months. This Agreement shall govern all campaigns conducted during the Term, with each campaign governed by a separate Order Form specifying the campaign duration (typically thirty (30) days), deliverables, and fees. Unless otherwise terminated as provided herein, the Term of the Agreement shall automatically renew for successive twelve (12) month period; provided, however, that if no Order Form has been executed by Client during the three (3) month period immediately preceding the expiration of the then-current Term, this Agreement shall not automatically renew and shall expire at the end of such Term without further notice required by either party.
- b) **Termination.** Either party may provide the other party written notice to terminate this Agreement at the end of the Term or any renewal thereof. Such notice must be made sixty (60) days prior to the end of the respective Term or renewal Term.
- c) **Termination For Cause.** This Agreement may be immediately terminated by either party without further liability or obligation to the other party if: (i) the other party otherwise materially breaches any provision, warranty, or representation of this Agreement, and, if such breach or violation is curable, it remains un-remedied for a period of thirty (30) days following receipt of written notice detailing such breach or violation; or (ii) the other party becomes insolvent, makes a general assignment for the benefit of its creditors, suffers or permits the appointment of a receiver for its business, or becomes

subject to any proceeding under bankruptcy laws or any other statute or laws relating to the insolvency or protection of the rights of creditors.

- d) **Following Termination.** In the event of any termination hereunder, Client shall pay Playkit all amounts due to Playkit up through the effective date of termination, including without limitation the actual approved costs, expenses, and fees properly incurred by Playkit on behalf of Client prior to the effective date of termination which cannot, through Playkit's commercially reasonable efforts (at no expense to Playkit), be reduced or cancelled, but not exceeding amounts approved in advance in writing by Client prior to the effective date of termination.

- 17) **Force Majeure.** Other than with respect to Client's payment obligations, neither party shall be held responsible for delays or non-performance caused by activities or factors beyond its reasonable control, including without limitation, war, weather, strikes, epidemics, public health emergencies, pandemics, lockouts, fires, acts of God, or terrorism or any technology-related event beyond a party's reasonable control, including without limitation: (i) the shutdown, suspension, or material restriction of any Third-Party Platform by governmental or regulatory action, legislation, or court order; (ii) platform-wide technical failures, outages, or service interruptions affecting any Third-Party Platform; (iii) sudden and material changes to platform policies, terms of service, or functionality that prevent or materially impair performance of the Services; or (iv) the removal, restriction, or suspension of content or accounts by any Third-Party Platform for reasons outside Playkit's reasonable control. Notwithstanding the foregoing, the affected party shall promptly provide written notice thereof to the other party, which notice shall include a detailed description of the event of force majeure along with the affected party's best estimate of the length of time such event will delay or prevent performance hereunder. Additionally, the affected party shall use reasonable efforts to limit the impact of the event of force majeure on its performance hereunder.
- 18) **Partial Invalidity.** In the event that any part or portion of this Agreement is deemed to be invalid and therefore unenforceable, the remaining provisions shall continue in full force and effect.
- 19) **Assignment.** Client may not assign or otherwise transfer this Agreement, in whole or in part, without the prior written consent of Playkit in

each instance such consent not to be unreasonably withheld, conditioned, or delayed. Any assignment in violation of this clause shall be null and void.

20) **Relationship of the Parties.** The parties hereto are independent contractors and as such, at no time shall either party be considered an employee or employer of the other. Without limitation on the generality of the foregoing, neither party may bind the other party to any agreement, obligation or covenant of any kind (expressed or implied) without the bound party's prior written consent in each instance.

21) **Survival.** Following the Term, any and all provisions set forth herein which, by their very nature, are intended to survive any expiration or termination hereof, shall so survive, including without limitation, the provisions respecting confidentiality, representations & warranties, non-solicitation, indemnifications, limitations on liability, ownership, and accrued payment obligations.

22) **Waiver.** The failure of either party to require performance by the other party of any provision hereof will not affect the full right to require such performance at any time thereafter; nor will the waiver by either party of a breach of any provision hereof be taken or held to be a waiver of the provision itself.

23) **Notices.** Any notice required or permitted in this Agreement shall be in writing and will be deemed to have been duly given if delivered personally, or mailed by first-class, U.S. mail, postage prepaid or by electronic mail with confirmation requested and received to the contact provided in the initial Order Form.

24) **Attorneys' Fees.** If either party incurs any legal fees associated with the enforcement of this Agreement or any rights under this Agreement, the prevailing party shall be entitled to recover its reasonable outside attorney's fees and any court, arbitration, mediation, or other reasonable litigation expenses from the other party.

25) **Dispute Resolution.** This Agreement shall be governed by the laws of the State of California without regard to its conflict of laws principles, and any mediation or arbitration shall take place in San Diego, California. Before initiating formal dispute resolution, the parties agree to attempt in good faith to resolve any dispute arising out of this Agreement through direct negotiations between senior representatives for a period of thirty (30) days following written notice of the dispute. If the dispute is not resolved through

negotiation, either party may initiate mediation administered by JAMS in accordance with its Mediation Rules, with the parties sharing equally the costs of mediation. If the dispute is not resolved through mediation within sixty (60) days of its commencement, either party may initiate binding arbitration administered by JAMS in accordance with its Comprehensive Arbitration Rules and Procedures, to be conducted by a single arbitrator, with the arbitrator's decision being final and binding and may be entered as a judgment in any court of competent jurisdiction, and the prevailing party shall be entitled to recover its reasonable attorneys' fees and costs. Notwithstanding the foregoing, either party may seek injunctive or other equitable relief in any state or federal court located in San Diego County, California, to prevent irreparable harm or breach of confidentiality obligations, and both parties submit to the exclusive jurisdiction and venue of such courts for such purposes.

26) **Entire Agreement; Modification.** This Agreement (along with any attachments specifically incorporated herein) sets forth the entire agreement between the parties with respect to its subject matter and supersedes any prior agreement or communications between the parties, whether written or oral relating hereto. No representation, inducement or promise has been made or relied upon by either party, unless as expressly set forth in this Agreement. This Agreement may be modified only by a written amendment signed by an authorized representative of each party. To the extent that the terms hereof contradict any of the terms of any attachment hereto, the terms hereof shall govern, unless specifically set forth to the contrary therein.

[SIGNATURES ON ORDER FORM]